



IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

57 WRIT PETITION NO. 10323 OF 2017

Kalyanrao Venkatrao Bavane

VERSUS

Rajabhau Raghunath Dhumal And Others

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Advocate for the Petitioner : Mr. Yash Mote i/by Mr. P. P. More

Advocate for Respondent No.1 : Mr. M. D. Gitte

Advocate for Respondent No.3 : S. S. Manale

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CORAM : SIDDHESHWAR S. THOMBRE, J.

DATE : 29.01.2026

PER COURT :

1. Heard the learned counsel for the petitioner.
2. By the present petition, the petitioner is aggrieved by the order dated 23.03.2017 passed by the State Information Commission, Bench at Aurangabad, whereby, in the portion marked at page 14, the State Information Commission observed that the petitioner had encroached upon Government land and directed the Block Development Officer, Panchayat Samiti, Latur to conduct an enquiry and to initiate action within a period of 15 days.
3. Mr. Yash Mote, the learned counsel for the petitioner vehemently submits that the directions issued by the State Information Commission are contrary to the provisions of the Right to Information Act, 2005.
4. He further submits that the State Information Commission does not

have jurisdiction or authority to direct initiation of an enquiry or action on the allegation of encroachment against the petitioner. Therefore, he submits that the impugned order is liable to be set aside.

5. Per contra, the learned counsel for respondent no.1 supports the impugned order. He submits that the petitioner had encroached upon Government land and respondent no.1, being an applicant under the Right to Information Act, had sought information from the concerned authorities; however, no action was taken. Therefore, the State Information Commission merely directed the authorities to conduct an enquiry and take appropriate action within 15 days. He submits that such directions are within the powers of the State Information Commission under Section 18 of the Right to Information Act, 2005.

6. Having heard the learned counsel for the respective parties and upon perusal of the impugned order, it reveals that under Section 18 of the Right to Information Act, 2005, the State Information Commission does not have the power to issue directions for initiation of enquiry or action in respect of alleged encroachment. The powers of the State Information Commission under the said provision are limited.

7. This Court has already marked the said portion of the order as "X". Considering the fact that the State Information Commission was not empowered to issue such directions, the impugned order to the extent it directs initiation of enquiry and action against the petitioner within 15 days is unsustainable in the eyes of law.

8. Accordingly, the petition is partly allowed. The order passed by the State Information Commission, to the extent of directing initiation of enquiry and taking action against the petitioner within 15 days, as marked "X", is hereby quashed and set aside..

[SIDDHESHWAR S. THOMBRE]
JUDGE